

The U.P. Avas Evam Vikas Parishad (Execution of Contracts and Assurances) Rules, 1966

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State of Uttar Pradesh - Act

The U.P. Avas Evam Vikas Parishad (Execution of Contracts and Assurances) Rules, 1966

UTTAR PRADESH

India

The U.P. Avas Evam Vikas Parishad (Execution of Contracts and Assurances) Rules, 1966

Rule THE-U-P-AVAS-EVAM-VIKAS-PARISHAD-EXECUTION-OF-CONTRACTS-AND-ASSURANCES-RULES-1966 of 1966

Published on 18 March 1967

Commenced on 18 March 1967

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The U.P. Avas Evam Vikas Parishad (Execution of Contracts and Assurances) Rules, 1966

Published vide Notification No.539-H/XXXVH-16(IX)-14-66, dated 18th March, 1967, Published in U.P. Gazette, Part I-Ka, dated March 18, 1967, p. 472

058.

In exercise of the powers under clause (u) of sub-section (2) of section 94 of the Uttar Pradesh Avas Evam Vikas Parishad Adhiniyam, 1965 (U.P. Act No. I of 1966) the Governor of Uttar Pradesh is pleased to make the followings rules regarding execution of contracts and assurances on behalf of the Board :

1.

Short title and commencement.

(1)

These rules may be called the U.P. Avas Evam Vikas Parishad (Execution of Contracts and Assurances) Rules, 1966.

(2)

They shall come into force with effect from the date of their publication in the official Gazette.

2.

Definition.

- In these rules unless there is anything repugnant to the subject or context, "Act" means the U.P. Avas Evam Vikas Parishad Adhiniyam, 1965.

3.

Authority for execution of contracts and assurances.

(1)

Every contract or assurance of property in connection with the affairs of the Board under the Act, shall be expressed to be made for and on behalf of the Board, and every such contract and assurance of property shall be executed, for and on behalf of the Board, by the Housing Commissioner, or by such other officers of the Board as may be authorised in writing by the Housing Commissioner either generally or for any particular case or class of cases.

(2)

No contract or assurance for any purpose, which in accordance with any provision of the Act or Rules made thereunder the Housing Commissioner may not carry out without the sanction of the Board or any other authority, shall be made by him unless such sanction has been given.

4.

[Manner of execution.

[Substituted by Notification No. 4078/XXXVII-II-16(IX)-14-66, dated 5th Dec. 1975, published in U.P. Gazette, Part 1-Ka, dated 20th Dec, 1975]

(1)

Every contract or assurance entered into the Housing Commissioner on behalf of the Board shall be entered into in such manner and from as would bind him if it were made on his own behalf and may in like manner and from be varied or discharged:

Provided that every contract for the execution of any work or goods which involve an expenditure exceeding rupees two thousand and five hundred shall be in writing and shall specify -

(i)

the work to be done or the materials or goods to be supplied, as the case may be;

(ii)

the price to be paid for such work, materials or goods;

(iii)

the time within which the contract or specified portion thereof shall be carried out; and

(iv)

the penalty which the contractor shall be liable to suffer for breach of any of the conditions by him.

(2)

No contract, assurance or instrument executed otherwise than as provided in this rule shall be binding on the Board.]

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